CASE ANALYSIS REPORT

Shreya Singhal v. Union of India (2015) 5 SCC 1

Student Name: Vaishnavi K

Register Number: 5272510220

Course: B.Com FinTech with AI

Activity Title: Case Analysis Report

\

TABLE OF CONTENT

S.NO	TOPIC
1	INTRODUCTION
2	FACTS OF THE CASE
3	LEGAL ISSUE
4	JUDGEMENT
5	LEGAL PRINCIPLE: CONTRACT FORMATION ANALYSIS
6	BUSINESS RELEVANCE
7	CONCLUSION

1. INTRODUCTION

1.1 CASE CITATION & JURISDICTION

Case Name: Shreya Singhal v. Union of India. Citation: (2015) 5 SCC 1; AIR 2015 SC 1523. Court: Supreme Court of India (Division Bench). Year of Decision: 2015 (decided on 24 March 2015). This case is a landmark constitutional law decision on the right to freedom of speech and expression under Article 19(1)(a) of the Constitution of India, and it remains the leading Indian authority on the constitutionality of restrictions on online speech.

1.2 Brief Introduction to the Case

Shreya Singhal v. Union of India concerns a constitutional challenge to Section 66A of the Information Technology Act, 2000, a provision that criminalised sending, through a computer or communication device, information that was grossly offensive, had menacing character, or was known to be false but was sent for the purpose of causing annoyance, inconvenience, danger, insult, injury, or ill will. Following the arrest of two young women in Maharashtra for posting and endorsing a Facebook comment critical of a city shutdown, Shreya Singhal, a law student, filed a Public Interest Litigation (PIL) before the Supreme Court of India challenging the constitutional validity of Section 66A as an unreasonable restriction on free speech. The Supreme Court's judgment, striking down the provision in its entirety, is widely regarded as one of the most significant free speech rulings in the history of Indian constitutional law and a foundational precedent for regulating online expression.

2. FACTS OF THE CASE

2.1 CHRONOLOGICAL SUMMARY OF EVENTS

- In November 2012, following the death of a prominent political leader in Mumbai, a bandh (a city-wide shutdown) was called, leading to significant disruption of daily life and commercial activity across the city.

- Two young women posted and "liked" comments on Facebook questioning the rationale and necessity of the total shutdown of the city in response to the leader's death.

- The women were arrested by the Mumbai (Palghar) police under Section 66A of the Information Technology Act, 2000, on the ground that their online posts constituted information sent via a computer resource that was grossly offensive or caused annoyance, within the meaning of the section.

- The arrests, later widely seen as a disproportionate response to an expression of political opinion, triggered significant public outrage and drew national attention to the sweeping and vaguely worded language of Section 66A.

- Shreya Singhal, then a law student in Delhi, filed a Public Interest Litigation (PIL) under Article 32 of the Constitution directly before the Supreme Court of India, challenging the constitutional validity of Section 66A as violative of the fundamental right to freedom of speech and expression.

- The petition was subsequently clubbed with several other similar petitions challenging Section 66A, as well as related provisions such as Section 69A (blocking of online content) and Section 79 (intermediary liability) of the Information Technology Act.

- The Union of India defended the constitutionality of Section 66A, arguing that it was a necessary and reasonable measure to regulate misuse of the internet and prevent harm arising from online communication.

- On 24 March 2015, a Division Bench of the Supreme Court, comprising Justices J. Chelameswar and Rohinton Fali Nariman, delivered its judgment, striking down Section 66A of the Information Technology Act, 2000 in its entirety as unconstitutional.

2.2 MATERIAL COMMERCIAL CONTEXT

Although Shreya Singhal is not a commercial or contractual dispute in the traditional sense, its subject matter is deeply embedded in the digital and technology services ecosystem: the challenged provision directly governed the liability of individuals for content transmitted over computer resources and communication devices, and closely related provisions under challenge (Sections 69A and 79) governed the obligations of internet intermediaries, such as social media platforms, internet service providers, and website operators, to block or take down

user-generated content. The case therefore arose in, and had a direct bearing on, the operational and compliance environment of technology platforms, social media companies, and internet service providers, all of which had to structure their content moderation, government-blocking-order compliance, and user-liability policies around the scope of these provisions.

3. LEGAL ISSUE

3.1 PRIMARY QUESTION OF LAW

The primary legal question before the Supreme Court was whether Section 66A of the Information Technology Act, 2000, which criminalised sending information through a computer resource or communication device that was grossly offensive, of menacing character, or intended to cause annoyance, inconvenience, danger, obstruction, insult, injury, criminal intimidation, enmity, hatred, or ill will, constituted an unreasonable and impermissibly vague restriction on the fundamental right to freedom of speech and expression guaranteed under Article 19(1)(a) of the Constitution of India, and whether it could be saved as a reasonable restriction under Article 19(2).

3.2 POINTS OF CONTENTION

The petitioners' position: The petitioners argued that Section 66A was couched in vague, undefined, and overly broad language, using terms such as "grossly offensive," "annoyance," and "inconvenience" that had no fixed or objective legal meaning, making it impossible for citizens to know in advance what speech was prohibited. They contended that this vagueness had a chilling effect on legitimate speech, as individuals would self-censor out of fear of arbitrary prosecution, and that the provision went far beyond the narrow grounds on which reasonable restrictions on free speech are permitted under Article 19(2), such as public order, defamation, or incitement to an offence, thereby rendering it unconstitutional.

The Union of India's position: The government argued that Section 66A was a necessary legislative response to the unique challenges posed by the internet, including cyberbullying, harassment, and the rapid, wide-reaching dissemination of harmful content, and that some degree of latitude in statutory language was permissible and even necessary to address a fast-evolving medium. It contended that mere possibility of abuse of a provision was not, by itself, sufficient

ground to strike it down as unconstitutional, and that the provision should be read down and applied narrowly rather than invalidated entirely.

4. JUDGMENT

4.1 COURT'S DECISION

The Supreme Court struck down Section 66A of the Information Technology Act, 2000 in its entirety, holding it to be unconstitutional and violative of Article 19(1)(a) of the Constitution, as it could not be saved under the reasonable restrictions permitted by Article 19(2). The Court also read down Section 79 and the associated Information Technology (Intermediary Guidelines) Rules, 2011, clarifying the circumstances in which intermediaries are required to take down content, and upheld the constitutional validity of Section 69A, subject to the procedural safeguards contained within it.

4.2 RATIO DECIDENDI (JUDICIAL REASONING)

Justice Nariman, writing for the Bench, distinguished between three concepts protected or regulated in the context of free speech: discussion, advocacy, and incitement. The Court held that a restriction on speech is permissible under Article 19(2) only if it is proximately and directly connected to incitement to commit an offence or to a disturbance of public order, and that mere discussion or advocacy of even unpopular or critical views, without any tendency to incite unlawful action, is protected speech and cannot be curtailed.

The Court found Section 66A's terminology, such as "grossly offensive," "menacing," "annoyance," "inconvenience," and "ill will," to be entirely undefined and vague, with no proximate connection to any of the specific grounds enumerated in Article 19(2). Because the provision failed to draw any distinction between mere discussion or advocacy and incitement, and because its wide and undefined language was capable of covering both innocent and objectionable speech alike, the Court held that it had a clear chilling effect on protected speech and was incapable of being saved through a narrow reading or by severing only the offending words, since the vagueness pervaded the entire provision.

The Court further rejected the argument that Section 66A was necessary because other statutes, such as the Indian Penal Code, dealt only with offline speech and not online speech, noting that

the mere fact that a new medium is used to disseminate expression does not justify a lower constitutional threshold for restricting that expression; the same standards of proximate connection to incitement or public disorder apply equally to online and offline speech.

5. LEGAL PRINCIPLE: CONSTITUTIONAL FREE SPEECH ANALYSIS

As Shreya Singhal is a constitutional law case rather than a private law contract dispute, this section reframes the requested contract-formation analysis to examine the analogous mechanics by which the Supreme Court evaluated the validity of a state-imposed restriction on speech, in place of the mechanics of offer, acceptance, and consideration used to analyse private bargains.

5.1 EVALUATION OF A VALID RESTRICTION (IN PLACE OF A VALID OFFER)

Just as a valid contractual offer must be clear, definite, and capable of certain interpretation to be distinguished from a vague invitation to treat, a valid restriction on a fundamental right under Article 19(2) must be clearly and narrowly defined, with a proximate and direct connection to one of the enumerated permissible grounds, such as public order, decency, morality, or incitement to an offence. The Court's analysis in Shreya Singhal effectively evaluated whether Section 66A constituted a properly defined, valid restriction, or merely an ill-defined and open-ended prohibition incapable of principled application; it concluded that the provision's vague and subjective terminology rendered it more akin to an arbitrary and undefined exercise of power than a valid, precisely drawn restriction capable of withstanding constitutional scrutiny.

5.2 MECHANICS OF ENFORCEMENT (IN PLACE OF MECHANICS OF ACCEPTANCE)

Where contract law examines how and when acceptance is validly communicated to conclude a bargain, constitutional analysis in this case examined how and when a restriction on speech could be validly enforced against a citizen without violating fundamental rights. The Court held that because Section 66A allowed for the criminal prosecution of speech based on entirely subjective standards of what might cause "annoyance" or "inconvenience" to any given recipient, its enforcement mechanism lacked the certainty and proximate connection to harm required for the valid application of any restriction on speech, whether communicated instantaneously online or through traditional means; this mirrors the requirement in contract law that communication

giving rise to legal consequences must be clear and objectively ascertainable rather than left to the subjective reaction of the recipient.

5.3 ANCILLARY CONSTITUTIONAL PILLARS

In place of consideration and intention to create legal relations, the ancillary pillars examined by the Court were proportionality and the doctrine of severability. On proportionality, the Court considered whether the restriction imposed by Section 66A was proportionate to any legitimate state interest, and found that its blanket and undifferentiated criminalisation of a vast range of speech, most of which bore no relation to public order or incitement, was wholly disproportionate. On severability, the Court considered whether the unconstitutional elements of the section could be excised while preserving a valid remainder, but concluded that the vagueness was so pervasive throughout the provision that no part of it could be salvaged, requiring the entire section to be struck down rather than narrowly read down.

6. BUSINESS RELEVANCE

6.1 APPLICATION IN MODERN BUSINESS

The Shreya Singhal judgment has significant and continuing relevance for technology, social media, and fintech businesses operating in India. By striking down Section 66A, the Court removed a broad and unpredictable criminal liability regime that could otherwise have deterred users, and by extension platforms, from engaging in ordinary commentary, criticism, and expression online. The Court's reading down of Section 79 and the Intermediary Guidelines Rules also directly shaped the compliance obligations of social media platforms, e-commerce marketplaces, and digital service providers, clarifying that intermediaries are generally required to take down content only pursuant to a court order or a notification from an appropriate government agency, rather than on the basis of private complaints alone. For fintech companies operating customer support, chat, or review platforms, or hosting user-generated content such as product reviews or community forums, the judgment provides an important benchmark for understanding the limits of liability for user speech and the safe harbour protections available to genuine intermediaries.

6.2 RISK MANAGEMENT & OPERATIONAL COMPLIANCE

For technology and financial services businesses, several risk management takeaways emerge from this judgment. First, companies operating any platform with user-generated content should structure their content moderation policies around clearly defined, objectively verifiable standards, mirroring the Court's insistence on precision and proximate connection to genuine harm, rather than vague standards like "offensive" or "objectionable" content that could themselves invite legal challenge or arbitrary enforcement. Second, businesses acting as intermediaries should ensure they act only upon proper legal process, such as a court order or an appropriate government directive, before removing user content, consistent with the safe harbour framework clarified in this judgment, to avoid both regulatory liability and reputational harm from either excessive censorship or negligent inaction. Third, compliance and legal teams in the technology sector should closely monitor subsequent legislative and regulatory developments, since government attempts to reintroduce similarly broad content-regulation provisions (whether through IT Rules amendments or new legislation) will continue to be tested against the constitutional standards this judgment established, making familiarity with its reasoning essential for anticipating and managing future regulatory risk.

7. CONCLUSION

7.1 PERSONAL LEARNING AND OBSERVATIONS

Studying Shreya Singhal v. Union of India offers a powerful illustration of how constitutional courts safeguard fundamental rights against vague and overbroad legislative encroachment, particularly in a rapidly evolving digital environment where the state's interest in regulating harmful online conduct must be carefully balanced against citizens' right to free expression. The case demonstrates that the mere possibility of misuse of a broadly worded provision is not a mere theoretical concern but a genuine constitutional defect, especially where such vagueness produces a chilling effect on ordinary discussion and dissent. From a professional standpoint, particularly in a technology or financial services career, this case underscores the critical importance of precise legal drafting, whether in legislation, platform policies, or contractual terms, since ambiguity that may seem administratively convenient can ultimately prove legally unsustainable and can expose both individuals and institutions to unpredictable liability. Ultimately, Shreya Singhal teaches that in a constitutional democracy, the protection of free

expression, including in the online space, is not merely an abstract ideal but an actively enforced legal safeguard against arbitrary and disproportionate restriction.

REFERENCES

- Shreya Singhal v. Union of India, (2015) 5 SCC 1; AIR 2015 SC 1523, Supreme Court of India.
- The Information Technology Act, 2000, ss. 66A, 69A, 79 (as considered in the judgment).
- The Constitution of India, Articles 19(1)(a), 19(2), and 32.
- "Animation - Shreya Singhal vs Union of India Section 66A IT Act, 2000, Freedom of Speech & Expression," available at: http://www.youtube.com/watch?v=lzOn1_ereSA